

AR.1 Owner-Builder Exemption Walkthrough

What Arkansas actually lets you do yourself — and the one question about your own parcel that changes the shape of the entire build.

Before you use this document

This is a process reference, not legal advice. Arkansas adopts one building code for the whole state and forbids your city or county from adopting a different one — and then requires nobody to enforce it on a house. The building permit, the inspections and the certificate of occupancy exist only where a city or a county chose to create them, and across most unincorporated Arkansas nobody did. What does not depend on that choice is the code itself, the onsite wastewater permit, and the trade licensing rules. Confirm every item with the office that will actually handle your parcel before you rely on it. Statute and rule text was read at arkleg.state.ar.us, codeofarrules.arkansas.gov and the licensing boards' own published statute books in September 2026; all of them change.

THE SHORT VERSION

Arkansas **does** license residential builders — and then exempts you from that license, in one sentence, for the house you are building for yourself. The exemption is real, it is short, and it has exactly one condition attached to it.

So the interesting question in Arkansas is not *may I build it*. It is **who, if anyone, is going to inspect it** — and then, separately and much more dangerously, **which of the trade exemptions actually reaches a house that nobody lives in yet**. Those are three different tests written by three different boards, and they do not agree.

The Arkansas position at a glance

Question	Arkansas's answer
Do you need a license to build your own house?	No. A person acting as a residential building contractor in the construction of their own residence is exempt (§ 17-25-513(1)) — unless they build more than one residence in a calendar year
Does the exemption cover hiring subs, or only your own hands?	Both. The exempt role expressly includes one who "assumes charge in a supervisory capacity or otherwise manages the construction" (§ 17-25-502(2)). You may act as your own general contractor
Is there a project-cost threshold?	A separate exemption covers work of \$2,000 or less (§ 17-25-513(3)), and it may not be split into smaller contracts. You do not need it — the owner-builder exemption has no dollar limit at all

The Arkansas position at a glance

Question	Arkansas's answer
Must you own the land? Must you live in it?	You must own it. Occupancy is where the traps are: the building exemption reaches a house built <i>for</i> your occupancy, but each trade exemption sets its own test and two of them say "occupied". See the trade section
How long must you keep it?	The statutes set no period. No holding period, no not-for-sale window, no resale clawback anywhere in the residential subchapter or its rules
Is there a form to file?	No. The exemption is self-executing — there is no state owner-builder affidavit and no exemption form. Your city may still want one
Do you need a building permit?	Only if your city — or, far more rarely, your county — created one. This is the sentence the rest of the kit turns on. Read the next section before anything else
Does the building code apply either way?	Yes. Always. The Arkansas Fire Prevention Code is adopted statewide and reaches one- and two-family dwellings by its own scope. Only the enforcement is optional

Residential licensing: Ark. Code Ann. Title 17, Chapter 25, Subchapter 5, administered by the Residential Contractors Committee of the Arkansas Contractors Licensing Board. The Board is now housed in the Arkansas Department of Labor and Licensing; the old aclb.arkansas.gov address redirects there.

THE EXEMPTION, IN FULL

Here is the whole of it. Arkansas puts the owner-builder exemption in the first two paragraphs of its residential exemptions section, and they are two different exemptions doing two different jobs.

Ark. Code Ann. § 17-25-513 — Exemptions

"The following shall be exempted from the licensing requirements of this subchapter:

(1) A person who acts as a residential building contractor in the construction of his or her residence unless he or she builds more than one (1) residence during any calendar year;

(2) The owner of a single family residence acting as his or her own home improvement contractor on his or her own property;"

(1) is the one you want when you are building a new house. (2) covers remodeling a home you already own, and — worth noticing — it carries *no* annual cap in its text at all.

Quoted from the Arkansas Contractors Licensing Board's own publication, Arkansas Residential Contractors Licensing Law — Statutes and Rules of the Residential Contractors Committee, revised April 2026, page 8.

"Own residence" is not left to common sense — it is defined by rule, and the definition is wider than the phrase sounds. This is the single most useful sentence in Arkansas owner-builder law, because without its last clause the exemption would be circular for anyone building a house they do not live in yet:

17 CAR § 295-101(6) — the definition that makes it work

"Own residence", as found in Arkansas Code § 17-25-509(c) and § 17-25-513, means the personal residence, the principal place of abode, the domicile, **or a residence constructed for the occupancy of the person who owns the property.**"

Read in the official Code of Arkansas Rules at codeofarrules.arkansas.gov, Title 17, and confirmed against the Board's own April 2026 publication. "Ownership" is separately defined at 17 CAR § 295-101(1) as the "sole and exclusive right to sell or convey property."

THE ONE CONDITION — AND FOUR THINGS ARKANSAS NEVER SAYS

The cap is a **calendar year**, not a rolling twelve months, and it counts residences *built*, not lots owned. Build one house for yourself this year and you are inside the exemption. Start a second in the same calendar year and you have lost it for both.

Conditions people expect to find in Arkansas law, and do not

Commonly assumed	What the text actually shows
A holding period	Nothing in the subchapter or its rules requires you to keep the house for any length of time
A "not for sale or lease" clause	There is none. The rule's test is that the residence was <i>constructed for the occupancy of the owner</i> — a test about purpose at the time of building, not a resale ban
An affidavit or exemption form	No state owner-builder affidavit exists. The Board publishes license applications, bonds and complaint forms — nothing for an exempt owner
A dollar threshold on the owner-builder exemption	The \$2,000 figure is a <i>different</i> exemption (§ 17-25-513(3)) for small jobs. Your own house is exempt at any value

These are negative findings. They were established by reading § 17-25-513 and the whole of 17 CAR pt. 295 in September 2026 and finding no such provision — not by inference from silence elsewhere. If a guide tells you Arkansas has a one-year no-sale rule, ask it for the section number.

THE QUESTION THAT DECIDES YOUR BUILD

Arkansas adopts **one** building code for the whole state and forbids your city or county from adopting a different one. What it never does is require anybody to enforce that code on a house. Three separate texts make the point, and they all use the same permissive verb.

Every verb is "may"

Who	What the text says	Cite
The code itself	Local governments "shall only adopt and enforce the provisions of the Arkansas Fire Prevention Code, 2021 Edition... the only foundation document available for modification by local jurisdictions should they choose to adopt more stringent provisions"	AFPC Vol. I § 101.2.2
Cities	A city of the first class may "Provide that a house or structure not be erected within the city limits except upon a permit "; second-class cities and incorporated towns may "Enforce building and safety codes"	§ 14-56-202
Counties	A county may "provide through ordinance for the establishment of any service..." — and "building codes" is not among the services the statute lists . The county planning subchapter enumerates "zoning, subdivision, setback, or entry control ordinances" — building code again absent	§ 14-14-802(b) § 14-17-207(a)

The Arkansas Fire Prevention Code, 2021 Edition took effect 1 January 2023 and is a state rule (015.01.22 Ark. Code R. 005). Its residential volume — Volume III — is the 2021 International Residential Code with Arkansas amendments, and by its own scope it applies to "detached one- and two-family dwellings and townhouses not more than three stories above grade plane in height" (§ R101.2).

Why there is no state backstop for a house

The building permit in the code is addressed to a **building official** — and the Arkansas Fire Prevention Code defines that as "any governmental official having authority to enforce that aspect of the Code." If your city or county never created the office, there is nobody to apply to and no permit to obtain.

The State Fire Marshal does not fill the gap. The only inspection duty the statute makes **mandatory** is for "places of public assembly, including factories or industrial plants normally employing ten (10) or more persons" (§ 20-22-1012(b)(1)). General inspection power is "*may*" (§ 20-22-1012(a)(1)), and the Marshal's remit is aimed at "factories, asylums, hospitals, churches, schools, halls, theaters, and all other places in which numbers of people work, live, or congregate" (§ 20-22-1010(b)(5)).

So the code governs your house and, in much of rural Arkansas, no building official will ever look at it. The standard still applies to you. So does the liability, and so does every lender, insurer and buyer who later asks what it was built to.

One protection worth knowing about while you are asking. Since 2019 a county "shall not regulate residential building design elements" (§ 14-17-212, Acts 2019 No. 446) — defined to include exterior color and cladding type, roof style and pitch, ornamentation, window and

door placement, the number and type of rooms, interior layout, and **minimum square footage**. Building and safety code requirements and National Flood Insurance Program conditions are carved out of the ban. A parallel section, § 14-56-204, applies to cities. If a county tells you your house is too small or the roof is the wrong pitch, that section is the one to read.

THE THREE TRADE EXEMPTIONS ARE THREE DIFFERENT TESTS

This is the part of Arkansas law that catches careful people out. All three trades have a homeowner exemption. **All three are worded differently, and the differences decide whether the exemption reaches a house that is still under construction.** Read the verbs.

Same idea, three different tests

Trade	The exemption	What the wording does to it
Electrical § 17-28-102(b)	"Nothing in this chapter shall be construed to require an individual to hold a license before doing electrical work on his or her primary residence except as otherwise required by state law, rules, regulations, or local ordinances ."	"Primary residence" is defined as "an unattached single-family dwelling used as the person's primary place of residence" (§ 17-28-101(9)). Present tense. Its application to a house not yet occupied is not addressed
Plumbing § 17-38-302(1)	"The licensing provisions of this chapter shall not apply to: (1) Plumbing work done by a property owner in a building owned and occupied by him or her as his or her home except when the license is required by local ordinance "	"Owned and occupied", with no rule extending it to a residence merely built <i>for</i> future occupancy. On a literal reading a house under construction is not yet occupied
HVACR § 17-33-102(b)(1)	"This chapter shall not apply to a person who: (1) Performs HVACR work in an existing building or structure owned and occupied by him or her as his or her home"	The narrowest of the three. "Existing building or structure" does not, on its face, reach new construction at all

*Electrical is licensed by the Board of Electrical Examiners and HVACR by the HVACR Licensing Board, both within the Arkansas Department of Labor and Licensing. **Plumbing is not** — plumbers and natural gas fitters are licensed by the Arkansas Department of Health through the Committee of Plumbing Examiners. Quotations read from each board's own published statute book, September 2026.*

What to do with that — the honest version

We are not going to tell you these exemptions certainly do or certainly do not cover your unoccupied new build. The texts are genuinely unresolved on the point and no Arkansas case or board rule settles it. What we can tell you is what the words are, which is more than any other guide will give you, and what the consequences of guessing wrong are.

Ask the board, in writing, before you start the work — and ask about your specific situation: a new dwelling, not yet occupied, that you own and intend to live in. Write the answer and the date on the line at the end of this document.

Three things are true whichever way the answer falls. Even when exempt from the *license*, an HVACR exempt person "is required to conform to rules on the performance of HVACR work as well as obtaining local permits and inspections as may be required by local ordinance" (§ 17-33-102(d)). The electrical exemption is expressly subordinate to local ordinances, and a city or county "may by ordinance require a person, before doing electrical work on his or her primary residence, to demonstrate a technical competency" (§ 17-28-305(b)(2)). And the plumbing exemption carries its own "except when the license is required by local ordinance" in the same sentence.

The septic system and the well go the other way. Both are governed by statutes that say plainly you may do your own — which, after three trade exemptions written in riddles, is a relief.

Two places Arkansas says yes without hedging

	What the statute says	Cite
Septic	The statute directs registration of installers " with the individual homeowner retaining all rights to install and repair his system in accordance with the provisions of this chapter." "Installer" is defined as one who works "for compensation... for others "	§ 14-236-102(b)(2) § 14-236-103(6)
Well	"Nothing in this chapter... shall prevent a person who has not obtained a license... from constructing, altering, or repairing a water well or installing or repairing a pump or pumping equipment for use by him or her on his or her own land "	§ 17-50-108(b)

Both come with a limit that matters more than the permission. You may install your own septic system, but you may **not design it** — Part I of the permit application "shall be completed by a Designated Representative" (Rules Pertaining to Onsite Wastewater Systems, § 4.10.1), and the permit itself is still required. You may drill your own well, but the exemption is from the *license* only: "No person shall construct, repair, or abandon... any water well without complying with the provisions of this chapter and the rules" (§ 17-50-107(a)). Casing, grouting, sealing, disinfection and separation distances all still bind you. AR.2 carries the numbers.

*Onsite wastewater rule text is from the Arkansas State Board of Health's Rules Pertaining to Onsite Wastewater Systems, effective 5 September 2024 — note the current title drops the older "and Regulations". Well rules are 17 CAR Part 11, Arkansas Water Well Construction Rules. **The Commission on Water Well Construction no longer exists:** Act 691 of 2023 abolished it and transferred everything to the Arkansas Natural Resources Commission in the Department of Agriculture. Guides still naming the old commission are working from stale sources.*

HIRING SUBCONTRACTORS — THE EXEMPTION IS YOURS, NOT THEIRS

Your exemption covers *you* managing the job. It does not travel to the people you hire. Arkansas shelters a subcontractor in two ways, and an owner-builder fits neither of them cleanly:

- § 17-25-513(4) exempts "a subcontractor **of a contractor licensed by the Residential Contractors Committee.**" You are exempt, not licensed — so on the face of the text this paragraph does not reach a sub you hire directly.
- § 17-25-513(5) exempts anyone "licensed as a contractor by another licensing agency, board, or commission of the State of Arkansas if the contractor is performing work within the scope of the license held." **This is the one that matters.** It is how your electrician, plumber and HVACR contractor qualify — because each holds a state license from their own board.

The practical rule that falls out of this is simple, and it is the same rule whether or not the fine print is ever resolved: **hire licensed trades and verify each license yourself before work starts.** A residential trade sub working directly for you on more than \$2,000 needs to be licensed by somebody — and the person who finds out otherwise, late, is you. Unlicensed contracting is a Class A misdemeanor with "each day in violation... to constitute a separate offense" (§ 17-25-505(c)).

Before you hire anyone, and before you pay anyone

Verify the license. The Contractors Licensing Board publishes a Find A Licensed Contractor lookup, and the Department of Labor and Licensing publishes rosters for electricians and HVACR. Plumbers are looked up separately through the Department of Health. AR.4 lists all of them.

Get the Notice to Owner, and keep it. On residential property of four or fewer units, no lien may be acquired unless the owner received the notice set out in Ark. Code Ann. § 18-44-115 — and "no lien may be claimed by any subcontractor, laborer, material supplier, or other lien claimant unless the owner... has received at least one (1) copy of the notice." It is the residential contractor's duty to give it "before the commencement of work." That notice protects *you*: without it, the lien fails.

TWO DEFINITIONS THAT CATCH PEOPLE

Read these before you assume which rules you are under

Term	What it actually means
"Single family residence" § 17-25-502(3)	"any project consisting of at least one (1) but no more than four (4) units of new construction for residential occupancy." A duplex, triplex or fourplex is still <i>residential</i> in Arkansas — it does not become a commercial job

Read these before you assume which rules you are under

Term	What it actually means
The \$50,000 figure § 17-25-101	It is the commercial threshold, and that chapter's own definition excludes houses: "except single-family residences... It is the intention of this definition to include all improvements, demolition, or structures, excepting only single-family residences. " If a guide applies \$50,000 to your house, it has the wrong subchapter

QUALIFICATION CHECKLIST — WORK THIS WITH A PEN**Confirm each of these before you break ground**

	Item	Date	Notes
☐	I own the parcel outright, or hold the sole and exclusive right to sell or convey it (17 CAR § 295-101(1)).		
☐	This house is being constructed for my own occupancy — the test in 17 CAR § 295-101(6).		
☐	I have not started, and will not start, a second residence in this same calendar year (§ 17-25-513(1)).		
☐	I asked my CITY whether it requires a building permit, and who issues it. Answer: Office _____ Answer _____		
☐	I asked my COUNTY the same question. Answer: Office _____ Answer _____		
☐	I confirmed whether the parcel sits inside a city's planning area or extraterritorial jurisdiction — a county mailing address does not settle this. Answer: Confirmed with _____		
☐	I asked the Board of Electrical Examiners, in writing, whether the § 17-28-102(b) homeowner exemption reaches my unoccupied new dwelling. Answer: Date _____ Answer _____		
☐	I asked the Department of Health the same about the § 17-38-302(1) plumbing exemption. Answer: Date _____ Answer _____		

Confirm each of these before you break ground

	Item	Date	Notes
☐	I asked the HVACR Licensing Board the same about § 17-33-102(b)(1), which on its face covers only existing buildings. Answer: Date _____ Answer _____		
☐	I checked whether my city requires a technical competency demonstration before I do my own electrical work (§ 17-28-305(b)(2)). Answer: Answer _____		
☐	I have a Designated Representative engaged for the septic design — I cannot design it myself (Onsite Wastewater Rules § 4.10.1).		
☐	Every subcontractor I intend to hire holds a current license from their own Arkansas board, and I have verified each one myself.		
☐	I received the § 18-44-115 Notice to Owner before work started, and filed it with this kit. Date: Date received _____		

Everything cited here is free to read, in three places. Statutes (**Ark. Code Ann. § 14-56-202**) are at **arkleg.state.ar.us** under Arkansas Code — search the section number; the site hands off to a free Lexis viewer, so the address is not worth bookmarking. Agency rules are at **codeofarrules.arkansas.gov**, by Title: **012** Public Safety holds the Fire Prevention Code, **007** Health the wastewater rules. The building code reads free at **codes.iccsafe.org/codes/arkansas** — Volume III is residential. **One warning:** Act 841 of 2023 moved the State Fire Marshal out of the Arkansas State Police and repealed most of §§ 12-13-102 to 12-13-119, re-enacting those duties at **§ 20-22-1009**. Guides written before 2023 still cite the repealed sections. Read September 2026.